

## 24PSCV02694 24PSCV02694

County: los-angeles

Division: Civil Law and Motion

Department: H

Hearing date: 2026-09-10

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Source SHA-256: 91dc767c76f215c75ea380d61d0782541a91c328a37758c26a26416d101da0d7

Case Number: 24PSCV02694 Hearing Date: September 10, 2026 Dept: H

Mendoza v. United

Rentals, Inc.,

Case No. 24PSCV02694

(Related to Case No. 25PSCV03525)

ORDER ON MOTION

TO COMPEL FURTHER PMK DEPOSITION

Plaintiff Elmer Mendoza's Motion

to Compel Further Answers at the Deposition of Defendant's Person Most Knowledgeable Nelson Antonio Blanco is GRANTED. Monetary Sanctions Against Defendant United Rentals and its Counsel of Record Michael S. Sutton are awarded in the reduced amount of \$2,250.

Background

Case No. 24PSCV02694

Plaintiff Elmer Mendoza ("Mendoza") alleges that he sustained injuries and damages on September 30, 2023, when a scissor lift fell over as he was using it.

On August 20, 2024, Mendoza filed a complaint, asserting causes of action against United Rentals (North America), Inc. (sued as United Rentals, Inc.) ("United Rentals") and Does 1-50 for: (1) Products Liability and (2) General Negligence.

On July 10, 2025, Mendoza filed an "Amendment to

Complaint,” correcting “United Rentals, Inc.” to “United Rentals (North America), Inc.”

On September 5, 2025, United Rentals filed a First Amended Cross-Complaint, asserting causes of action against Evercharge, Inc., Evercharge Service, LLC (“Evercharge Service”) and Does 1-50 for: (1) Equitable Indemnity, (2) Contribution and Apportionment, (3) Declaratory Relief, (4) Negligence, (5) Express Contractual Indemnity and (6) Breach of Contract.

On May 26, 2026, the Court related Case Nos. 24PSCV02694 and 25PSCV03525 and designated Case No. 24PSCV02694 as the lead case.

A Case Management Conference/Post-Mediation Status Conference and Order to Show Cause Re: Notice of Related Case are set for November 16, 2026.

Case No. 25PSCV03525

Plaintiff

Technology Insurance Company (“Technology Insurance”) alleges as follows:

Plaintiff

is the workers' compensation carrier for the employer of Mendoza and Jaime Ollave, who sustained injuries and damages in a September 30, 2023 workplace accident due to a defective scissor lift rented from United Rentals.

On

September 30, 2025, Technology Insurance filed a complaint, asserting causes of action against United Rentals and Does 1-50 for: (1) Products Liability and (2) General Negligence.

On

March 9, 2026, United Rentals filed a cross-complaint, asserting causes of action against Evercharge, Inc., Evercharge Service and Does 1-50 for: (1) Equitable Indemnity; (2) Contribution and Apportionment; (3) Declaratory Relief; (4) Negligence; (5) Express Contractual Indemnity and (6) Breach of Contract.

On May

19, 2026, United Rentals dismissed Evercharge Service, without prejudice.

On May 26, 2026, the Court related Case Nos. 24PSCV02694 and 25PSCV03525 and designated Case No. 24PSCV02694 as the lead case.

A Case Management Conference/OSC Re: Default and an Order to Show Cause Re: Dismissal as to Defendant Evercharge are set for November 16, 2026.

Legal  
Standard

A party seeking discovery from a person who is not a party to the action may obtain discovery by oral deposition, written deposition, or deposition for production of business records.¿ (Code Civ. Proc., § 2020.010.)¿

Code  
of Civil Procedure section 2025.480 provides, in relevant part, as follows:

“(a)

If a deponent fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent's control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production.

(b)

This motion shall be made no later than 60 days after the completion of the record of the deposition, and shall be accompanied by a meet and confer declaration under Section 2016.040.”

(Code  
Civ. Proc., § 2025.480)

Discussion

Plaintiff moves the Court for an order compelling United Rentals' designated Person Most Knowledgeable, Nelson Antonio Blanco (“Blanco”), to provide further answers to the deposition questions he was

instructed not to answer at his April 6, 2026 deposition and to resume and complete his deposition and to testify fully on the matters for which he was designated (Topics 3, 4, 10, and 11). Plaintiff also seeks sanctions against United Rentals and its counsel of record, Michael S. Sutton ("Sutton"), jointly and severally, in the amount of \$3,904.60.

Defendant United Rentals produced Mr. Blanco to testify on Categories 3, 4, 10, and 11 of the deposition notice, which encompass United Rentals' pre-rental inspection policies for the subject lift, all inspection and maintenance records for the lift, and the instructions, warnings, and training provided in connection with the rental. Defense counsel nonetheless instructed Mr. Blanco not to answer various questions posed to him at deposition, including questions about the lift's tilt sensors, alarms, and leveling mechanisms, and about the training of the United Rentals employee who inspected the lift and prepared its Condition Report, on the sole ground that the questions "exceeded the scope" of those categories. Counsel asserted no privilege and never suspended the deposition to seek a protective order. The court reporter marked each instruction for a motion to compel.

An attorney may instruct a deponent not to answer only to protect privileged information or to suspend the deposition and move for a protective order. A relevance or scope objection is preserved without any instruction not to answer. (*Stewart v. Colonial Western Agency, Inc.* (2001) 87 Cal.App.4th 1006 ["irrelevance alone is an insufficient ground to justify preventing a witness from answering a question posed at a deposition"].) The instructions were also substantively baseless, as the questions fall squarely within Categories 3, 10, and 11. Even if the questions were beyond the scope, a PMK must testify to all information reasonably available to the corporation, the remedy is never an instruction not to answer.

Accordingly, the Court grants Plaintiff's motion to compel further responses.

## Sanctions

The court shall impose a monetary sanction against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel an answer or production, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., §

2025.480(j).)

Here, the Court finds that Defendant did not act

with substantial justification. Applying a lodestar approach and in view of the totality of the circumstances, the Court will award sanctions in the reduced amount of

\$2,250. Sanctions are awarded against United Rentals and its counsel of record, jointly and severally, and are payable within 30 days of the notice of ruling.